

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
				13b. RATING	
				14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Instrument Name: Brand Name (Only) Lubell LL 1424HP Underwater Acoustic Transducers mounted within Stainless Steel Cages

Solicitation W912EK26QA016 for Brand Name (only) Lubell LL 1424HP Underwater Acoustic Transducers in support of Brandon Road Inter Basin Project is a 100% Small Business Set-Aside, Request for Quote and will result in a Firm-Fixed-Price Purchase Order. Award will be made to the quoter that can provide the product according to the Scope of Work (SOW) within a reasonable price (lowest price) deemed to be in the best interest of the Government. Quotes received after the solicitation closing date and time (CST) must be deemed late and must not be considered for award. Quotes that fail to provide all the following required documentation will be considered non-responsive and must not be considered for award:

Volume 1: Cover sheet containing company name, address, EUI, CAGE, Point of Contact (POC), POC direct phone line, POC email address.

Volume 2: SF 1449 signed with unit and total prices complete for all CLINS

Volume 3: Copy of Representation and Certification from sam.gov, as confirmation the company is registered in sam.gov

Volume 4: All resellers **MUST** provide a detailed plan to meet the requirements in the SOW, with an emphasis on the testing.

Quotes must be emailed no later than the closing date and **CST** time to:

Sam Johanson, Contract Specialist at samantha.k.johanson@usace.army.mil

Jeff Voss, Contracting Officer at jeffrey.r.voss@usace.army.mil

*** END OF NARRATIVE ***

Continuation of Supplies or Services and Prices/Costs**Additional Information/Notes****SCHEDULE OF PRICES**

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	<u>BASE BID</u>				
0001	Transducers and Transformers	230	EA	XXXXXXXX	\$
0002	"in the Dry" Testing at Lubell Labs	230	EA	XXXXXXXX	\$
0003	"in the Dry" Testing at Romeoville	230	EA	XXXXXXXX	\$
0004	"in the Wet" Testing at Lubell Labs	230	EA	XXXXXXXX	\$
0005	Delivery	5	EA	XXXXXXXX	\$
TOTAL OF ESTIMATED AMOUNTS FOR BASE BID (ITEM NOS. 0001 THROUGH 0005, INCL.)					\$
	<u>OPTION A</u>				
0101	Transducers and Transformers	50	EA	XXXXXXXX	\$
0102	"in the Dry" Testing at Lubell Labs	50	EA	XXXXXXXX	\$
0103	"in the Dry" Testing at Romeoville	50	EA	XXXXXXXX	\$
0104	"in the Wet" Testing at Lubell Labs	50	EA	XXXXXXXX	\$
0105	Delivery	1	EA	XXXXXXXX	\$
TOTAL OF ESTIMATED AMOUNTS FOR OPTION A (ITEM NOS. 0101 THROUGH 0105, INCL.)					\$

EA = EACH

THE GOVERNMENT RESERVES THE RIGHT TO EXCERCISE OPTION A
WITHIN 365 CALENDAR DAYS AFTER NTP.
IF OPTION A IS EXERCISED, THE CONTRACT WILL
NOT BE EXTENDED

PLEASE ENSURE THAT UNIT PRICE AND AMOUNT LINES FOR ALL ITEMS
HAVE BEEN COMPLETED.

*** END OF NARRATIVE ***

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Lubell LL 1424HP Underwater Acoustic Transducers mounted within stainless steel cages, Bridge Transformers - designed to match the impedance between the amplifier and Lubell LL 1424HP, and Wet-Mateable-Ends. Pricing Arrangement: Firm Fixed Price	230	Each		
0002	In the Dry - Testing at Contractor's Facility in accordance with the Scope of work Pricing Arrangement: Firm Fixed Price	230	Each		
0003	In the Dry - Testing at Romeoville IL in accordance with the Scope of Work Pricing Arrangement: Firm Fixed Price	230	Each		
0004	In the Wet - Testing at Contractor's Facility in accordance with the Scope of Work Pricing Arrangement: Firm Fixed Price	230	Each		
0005	Equipment Delivery - In accordance with Scope of Work Pricing Arrangement: Firm Fixed Price	5	Each		
Option Line Item 0006	Lubell LL 1424HP Underwater Acoustic Transducers mounted within stainless steel cages, Bridge Transformers - designed to match the impedance between the amplifier and Lubell LL 1424HP, and Wet-Mateable-Ends. Pricing Arrangement: Firm Fixed Price	50	Each		
Option		50	Each		

Line Item 0007	In the Dry - Testing at Contractor's Facility in accordance with the Scope of Work Pricing Arrangement: Firm Fixed Price				
Option Line Item 0008	In the Dry - Testing at Romeoville IL in accordance with the Scope of Work Pricing Arrangement: Firm Fixed Price	50	Each		
Option Line Item 0009	In the Wet- Testing at Contractor's Facility in accordance with the Scope of Work Pricing Arrangement: Firm Fixed Price	50	Each		
Option Line Item 0010	Equipment Delivery - In accordance with Scope of Work Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

SCOPE OF WORK: Underwater Fish Acoustic Deterrence Requirements for Broadband Transducers

The U.S. Army Corps of Engineers, Rock Island District needs military grade transducers for underwater acoustic fish deterrent systems designed for navigation lock approach channels. Below lists the equipment as well as the design and performance specifications required:

1. Lubell LL1424HP Underwater Acoustic Transducers mounted within Stainless Steel Cage - Quantity of 230 (Amplifiers not to be supplied by the contractor)

Transducer specifications are as follows:

Piezoelectric underwater acoustic transducer

Test data on the speaker performance across a frequency range by sound pressure levels (dB 1 re Pa @ 1 m).

Frequency range 200 Hz to greater than 8000 Hz, omni-directional

Loudness greater than 170 dB across the frequency range of 200-8000 Hz

Ability to be placed between 9-40 feet without compensation

Wet contact, military grade bulkheaded connectors, male and female, MIL A-8625 anodized aluminum, MCIL3F // MCDLS-F // (PRO) Subconn on 24 inch 3/C SOOW pigtailed on one end of each pair of connectors.

Speaker housing to withstand harsh environments (i.e., not pools) made of anodized aluminum, AL-MAG (aluminum magnesium)

Speaker housing to withstand corrosion (Mil-A-8625 specification) and with a secondary coating of LINEX

Housing capable of being placed in a cage without damage when adhering the cage to the speaker

Speakers designed for continuous long-term playback when driven by 75-80 Vrms, no more than 14 Amps, and ability to be used with off-the-shelf amplifiers

Details on overarching specifications:

Piezoelectric underwater acoustic transducer uses the piezoelectric effect for generating sound. The initial mechanical motion is created by applying a voltage to a piezoelectric material, and this

motion is typically converted into audible sound using diaphragms and resonators. Compared to other speaker designs piezoelectric speakers are relatively easy to drive; for example, they can be connected directly to TTL outputs, although more complex drivers can give greater sound intensity. Typically, they operate well in the range of 1-5kHz and up to 100kHz in ultrasound applications.

Test data on the speaker performance across a frequency range by sound pressure levels (dB 1 re Pa @ 1 m): the manufacturer should provide basic test data on the speaker's performance such as power consumption, transmit voltage across frequency, impedance magnitude across the frequencies, and sound pressure level across the frequency ranges. Included with this contract, the contractor will provide, from the manufacturer, a graph of impedance magnitude across the frequencies for each transducer (each marked with a unique identifier) so that the contractor performing the additional transport and installation of the speakers can compare the graphs from the manufacturer to the graphs that they create from each individual transducer. See item 4 below.

Frequency range 200 Hz to greater than 8000 Hz, omni-directional: this is based on discussions with and peer-reviewed literature on the hearing ranges of Asian carp. The speakers must be able to produce sound over this broad frequency range and do so with stability in the signal (i.e., at similar decibels).

Loudness greater than or 180 dB across the frequency range of 200-8000 Hz: this is based on ERDC 2017 work for LRC in which a detailed sound map of BRLD approach lock was developed. The speakers must be able to produce enough sound pressure (decibels) over 25 feet so that at 25 feet the perceived decibels are greater than 160 dB and do so with stability in the signal (i.e., at similar decibels).

Wet mateable (able to plug the male and female multi-pin connectors under water), military grade connectors (i.e., Subcon connectors): this will be needed for deployment of the speakers and the ability to hot-swap the speakers without a full deconstruction of the engineered channel. MCIL3F // MCDLS-F // (PRO) Subconn on SOOW 24-inch pigtail for installation contractor to splice heavier gage cable for the long cable runs.

Speaker housing to withstand harsh environments (i.e., not pools) made of anodized aluminum: as mentioned the speakers will be placed in an approach lock. Between the flushing water, debris from the river and vessels and prop wash, the speakers must be made of strong materials that can tolerate the approach channel conditions.

2. Bridging Transformers - Quantity of 230 - Part no. AC1424HP, designed to match the impedance between the amplifiers and Lubell LL1424HP

3. Separate Wet-Mateable-Ends - Quantity of 230 - These are to be hard wired by the Construction Contractor to their provided cables for plugging into their mates mounted in the transducer. No cables are to be provided by contractor.

4. Testing of Transducers -

a. Dry Test: The contractor shall test transducers in the dry at their facility. They will also need to travel to Romeoville, IL to perform another in the dry test of the transducers in person once delivered to the storage location at Romeoville. The contractor shall provide frequency vs. impedance hard copies of the graphs for comparison against future tests conducted by the construction contractor during their shipment and installation. The results must show that the transducers are within 5% tolerance of the specifications.

b. Wet Test: The contractor shall test transducers in the wet at their facility prior to shipment. See Figure 1 within Contract Attachment 0001 for general test setup. The contractor shall pre-set each amplifier with software to set output limits specific to the transducers (current and voltage & frequency limits); as well as an adjustable tolerance for each future impedance sweep test for the amplifier to flag a particular speaker if it is out of the manufacture's recommended tolerance. The contractor shall provide soft and hard copies of the results for comparison against future tests conducted by the construction contractor during their shipment and installation. The results must show that the transducers are within 5% tolerance of the specifications. The contractor shall acquire the following items to enable the testing and shall return any Government Furnished Equipment to the Government after completion of this contract.

i. Bosch Dynacord IPX10:4 amplifier (Government Furnished Equipment)

ii. water tank

iii. ladder

iv. gantry crane

v. hoist

Figure 1 - Hydroacoustic Speaker Wet Test Setup - See Attachment 0001

5. Impedance test equipment:

a. DATs, by Dayton - Quantity of (2) - SOFTWARE /HARDWARE: DAYTON AUDIO V3 TEST SYSTEM: PART# 390-807, DAYTON AUDIO DATS V3 COMPUTER BASED SPEAKER & AUDIO COMPONENT TEST SYSTEM (PARTS-EXPRESS.COM) (<https://www.parts-express.com/Dayton-Audio-DATS-V3-Computer-Based-Audio-Component-Test-System-390-807?quantity=1>)

6. OPTIONS:

a. Additional acoustic speakers as spares - Quantity of (50)

7. Delivery of Equipment

All ordered equipment shall be shipped by the contractor to USACE facilities located at 790 East Old Romeo Road, Lockport, IL 60441. This is the location of the current electric dispersal barriers operated and maintained by the Chicago District, USACE.

Partial deliveries shall be accepted at no additional cost to the Government per coordination with Contracting Officer after supply contract award. A maximum of 3 partial shipments, one every 6-months, will be accepted. All equipment within the order shall be fulfilled within 24 months of contract award.

Please coordinate delivery with the POC listed below and provide notice of at least one day prior to delivery. A forklift is on site and will be able to offload pallets when delivered. Deliveries can only be accepted Monday through Friday, 7:00 am to 3:00 pm.

POC: Joe Conigliaro

Electrical Engineering Technician

U.S. Army Corps of Engineers

P: (630) 207-1177

E: joseph.a.conigliaro@usace.army.mil

Alt POCs:

Mike Walsh - (815) 510-0361

Nick Barkowski - (312) 401-3827

*** END OF NARRATIVE ***

Requirements

The U.S. Army Corps of Engineers, Rock Island District has a requirement for military grade transducers for underwater acoustic fish deterrent systems designed for navigation lock approach channels

0001

Product Service Code : 5845

North American Industry Classification System (NAICS) : 334310

0002

Product Service Code : 5845

North American Industry Classification System (NAICS) : 334310

0003

Product Service Code : 5845

North American Industry Classification System (NAICS) : 334310

0004

Product Service Code : 5845

North American Industry Classification System (NAICS) : 334310

0005

Product Service Code : 5845

North American Industry Classification System (NAICS) : 334310

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See SOW for details. DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
0002	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
0003	Inspection and Acceptance Location Both Destination Instructions: See SOW for details

	DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
0004	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
0005	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif

Option Line Item 0006	Inspection and Acceptance Location Both Destination Instructions: See SOW for details. DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
Option Line Item 0007	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
Option Line Item 0008	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA

	W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
Option Line Item 0009	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif
Option Line Item 0010	Inspection and Acceptance Location Both Destination Instructions: See SOW for details DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Mahmoud S. Alafif

Continuation of Deliveries or Performance

All ordered equipment must be shipped to **USACE facilities located at 790 East Old Romeo Road, Lockport, IL 60441**. This is the location of the current electric dispersal barriers operated and maintained by the Chicago District, USACE.

Partial deliveries shall be accepted at no additional cost to the Government per coordination with Contracting Officer after supply contract award. A maximum of 3 partial shipments, one every 6-months, will be accepted. **All equipment within the order shall be fulfilled within 24 months of contract award.**

Please coordinate delivery with the POC listed below and provide notice of at least one day prior to delivery. A forklift is on site and will be able to offload pallets when delivered. Deliveries can only be accepted Monday through Friday, 7:00 am to 3:00 pm.

POC: Joe Conigliaro

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Alt POCs:

Mike Walsh - (815) 510-0361

Nick Barkowski - (312) 401-3827

*** END OF NARRATIVE ***

0001	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 230 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA
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	W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: FoB Point
0002	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 230 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination

0003	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 230 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
0004	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 230 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro

	Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
0005	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 5 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
Option Line Item 0006	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 50 Each

	Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
Option Line Item 0007	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 50 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details

	Party to Pay Transportation Cost: Government Point Type: Destination
Option Line Item 0008	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 50 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
Option Line Item 0009	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 50 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND

	KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination
Option Line Item 0010	Delivery Schedule Delivery Before Delivery Date 29 May 2028 Quantity 1 Each Address and POC Ship To DoDAAC: W912EK CountryCode: USA W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES Joe Conigliaro Special Handling/Notes FoB Details Party to Pay Transportation Cost: Government Point Type: Destination

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation) (Alternate I)	2026-02	Alternate I	2026-02
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	2026-02		

52.219-8	Utilization of Small Business Concerns. (Deviation)	2026-02
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation)	2026-02

52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02
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DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.232-7003	Electronic Submission of Payment Requests and	2018-12		

Receiving Reports.

252.232-7010	Levies on Contract Payments.	2006-12
252.246-7008	Sources of Electronic Parts.	2023-01
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-28	Postaward Small Business Program Rerepresentation. (Deviation)	2026-02		

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or

indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of

13 CFR 127.506(a) through (c). [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [] is, [] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) HUBZone joint venture eligible under the HUBZone Program.[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____] Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.202-1	Definitions.	2020-06		
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02		
52.222-3	Convict Labor. (Deviation)	2026-02		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment. (Deviation)	2026-02		
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05		
52.223-23	Sustainable Products. (Deviation)	2026-02		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.233-1	Disputes. (Deviation)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.252-2	Clauses Incorporated by Reference.	1998-02		

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachment 0001 to W912EK26QA016, Figure 1 - Hydroacoustic Speaker Test Setup

*** END OF NARRATIVE ***

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective
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Date

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05
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PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered

defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☒ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7000	Buy American--Balance of Payments Program Certificate.	2024-02
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BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) Definitions. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) Certifications and identification of country of origin.

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products

manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55%
Domestic Content (yes/no)		
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

PRICE

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

QUESTION AND ANSWER VIA PROJNET

ALL SUBMITTED QUESTIONS FOR THIS PROJECT AND THE ANSWERS PROVIDED SHALL BE VIEWED IN BIDDER INQUIRY IN PROJNET AT (<https://www.projnet.org>).

Technical inquiries and questions relating to this solicitation are to be submitted via Bidder Inquiry in ProjNet at (<https://www.projnet.org>) No Later Than **(NLT) 07 May 2026, 2:00 PM CST**. To submit or review inquiry items, prospective vendors will need to use the Bidder Inquiry Key presented below and follow the instructions listed below the key for access. A prospective vendor who submits a comment /question will receive an acknowledgement of their comment/question via email. Another email to the same address will notify the prospective vendor once the reply is available for viewing.

The Bidder Inquiry Key is: **3J2X4G-ZWGBUP**

Specific Instructions for First Time ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
2. Identify the Agency. This should be marked as USACE.
3. Key. Enter the Bidder Inquiry Key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click Continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Click Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be provided any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.

3. Identify the Agency. This should be marked as USACE.
4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-2	Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Deviation)	2026-02		

Prohibition on Contracting with Inverted Domestic Corporations-Representation (Feb 2026) (Deviation)

(a) Definitions. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

(1) It [] is, [X] is not an inverted domestic corporation; and

(2) It [] is, [X] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06
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Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)